

STATE OF NEW YORK

1849--A

Cal. No. 527

2025-2026 Regular Sessions

IN SENATE

January 14, 2025

Introduced by Sens. MAYER, GOUNARDES, HARCKHAM -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- reported favorably from said committee and committed to the Committee on Finance -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the judiciary law, in relation to requiring data reporting by the chief administrator to delineate specific information relating to all courts in the unified court system, including town and village courts

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraph (e) of subdivision 2 of section 212 of the judiciary law, as amended by chapter 323 of the laws of 1987, the closing paragraph as amended by chapter 349 of the laws of 1995, is amended to read as follows:

(e) Prepare forms and compile and publish data on family offenses as defined in subdivision one of section eight hundred twelve of the family court act or subdivision one of section 530.11 of the criminal procedure law, and proceedings or actions involving family offenses in all courts~~[-]~~ in the unified court system, and require reporting of such data by all courts, including town and village courts to the greatest extent practicable, including but not limited to the following information:

- (i) the offense alleged;
- (ii) the relationship of the alleged offender to the petitioner or complainant;
- (iii) the court where the action or proceeding was instituted;
- (iv) the disposition; and
- (v) in the case of dismissal, the reasons therefor.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 In executing this requirement, the chief administrator may adopt rules
2 requiring appropriate law enforcement or criminal justice agencies to
3 identify actions and proceedings involving family offenses and, with
4 respect to such actions and proceedings, to report, in such form and
5 manner as the chief administrator shall prescribe, the information spec-
6 ified herein.

7 The chief administrator of the courts shall adopt rules to facilitate
8 record sharing and other communication among [~~the supreme, criminal and~~
9 ~~family~~] all courts in the unified court system, including town and
10 village courts, subject to applicable provisions of the domestic
11 relations law, criminal procedure law and the family court act pertain-
12 ing to the confidentiality, expungement and sealing of records, where
13 such courts exercise concurrent jurisdiction over family offense
14 proceedings or proceedings involving orders of protection.

15 § 2. The opening paragraphs of paragraphs (u-1) and (v-1) of subdivi-
16 sion 2 of section 212 of the judiciary law, as added by chapter 102 of
17 the laws of 2020, are amended to read as follows:

18 Compile and publish data on misdemeanor offenses in all courts in the
19 unified court system, and require reporting of such data by all courts,
20 including town and village courts, disaggregated by county, and by indi-
21 vidual court, including the following information:

22 Compile and publish data on violations, to the greatest extent practi-
23 cable, in all courts in the unified court system, and require reporting
24 of such data by all courts, including town and village courts, disaggre-
25 gated by county, and by individual court, including the following infor-
26 mation:

27 § 3. Paragraph (w-1) of subdivision 2 of section 212 of the judiciary
28 law, as added by chapter 102 of the laws of 2020, is amended to read as
29 follows:

30 (w-1) The chief administrator shall include the information required
31 by paragraphs (u-1) [~~and~~], (v-1), and (ff) of this subdivision in the
32 annual report submitted to the legislature and the governor pursuant to
33 paragraph (j) of subdivision one of this section. The chief administra-
34 tor shall also make the information required by paragraphs (u-1) [~~and~~],
35 (v-1), and (ff) of this subdivision available to the public by posting
36 it on the website of the office of court administration and shall update
37 such information on a monthly basis. The information shall be posted in
38 alphanumeric form that can be digitally transmitted or processed and not
39 in portable document format or scanned copies of original documents.

40 § 4. Subdivision 2 of section 212 of the judiciary law is amended by
41 adding two new paragraphs (ff) and (gg) to read as follows:

42 (ff) Prepare forms and compile and publish data on landlord-initiated
43 eviction filings, proceedings or actions and on tenant-initiated
44 filings, proceedings, or actions in all courts in the unified court
45 system, and require reporting of such data by all courts, including town
46 and village courts to the greatest extent practicable, disaggregated by
47 county, and by individual court, including but not limited to the
48 following information:

49 (i) in the case of landlord-initiated eviction filings, proceedings,
50 or actions, the total number in each court by month, categorized by
51 whether nonpayment or holdover, the amount of the money judgment
52 entered, if any, and whether the landlord or tenant was represented by
53 an attorney;

54 (ii) in the case of tenant-initiated filings, proceedings, or actions,
55 the total number in each court by month categorized by whether seeking
56 judgment directing repairs, restoration to occupancy after an unlawful

1 eviction, or other relief, and whether the landlord or tenant was
2 represented by an attorney;

3 (iii) the court where the action or proceeding was instituted;

4 (iv) the disposition of the proceeding, including whether a judgment
5 and warrant of eviction was issued, repairs, restoration to occupancy,
6 or other relief ordered, and the amount of the money judgment entered,
7 if any; and

8 (v) in the case of dismissal, the reasons therefor.

9 (gg) In addition to the data reporting required under paragraphs (e),
10 (u-1), (v-1), (w-1), and (ff) of this subdivision, wherever the chief
11 administrator is required to compile, report, and make other court data
12 publicly available, or wherever the chief administrator opts to require
13 such collection, reporting, and public availability of data, this shall
14 include data from all courts in the unified court system, including town
15 and village courts to the greatest extent practicable, disaggregated by
16 county and by individual court.

17 § 5. This act shall take effect two years after it shall have become a
18 law.